

Pre-Filing Execution Supplement

Name Clearance, Tennessee Filing, Benevolence Controls & Intellectual Property Records

Version 0.4 | September 19, 2026

[[LEGAL_CORPORATE_NAME]] / [[PUBLIC_COMMUNITY_NAME]]

Pre-filing working draft. Counsel/CPA and future Board review required before legal or tax submission. Not legal or tax advice.

Purpose

Complete the pre-filing controls that can be designed before a final name, additional directors, real addresses, or budget assumptions exist.

Final Name Clearance Checklist

Purpose: Convert a three-name finalist list into one filing candidate without treating a web search as legal clearance.

Gate 1 - Identity fit

For each finalist, record:

- exact public spelling, capitalization, punctuation, and pronunciation;
- proposed Tennessee corporate name and legal suffix;
- one-sentence description: [[NAME]] is a religious community devoted to worship, inquiry, formation, service, and responsible study.;
- whether the name still works for research/publication, pastoral care, charitable service, clergy formation, property, and local assemblies;
- whether a reasonable outsider could mistake the organization for an existing denomination, government body, university, or another organization.

Reject a candidate that requires a long explanation merely to avoid a misleading impression.

Gate 2 - Tennessee entity screen

Immediately before selection/filing:

1. Search the Tennessee Secretary of State business database for the exact name and confusingly similar roots.
2. Confirm that the proposed corporate name is distinguishable on the Secretary of State's records.
3. Review language for false implications of governmental or organizational affiliation/sponsorship.
4. If the candidate is selected but filing will not occur promptly, consider the current four-month name-reservation mechanism.
5. Save a dated search record or screenshot in the permanent formation file.

Current Tennessee SOS fee schedule checked September 19, 2026: domestic nonprofit name reservation **\$20**; nonprofit charter **\$100**. Re-check immediately before payment.

Gate 3 - Trademark and common-law conflict screen

- Search USPTO federal trademark records for exact and similar wording in relevant service classes.
- Search state trademark/business records where counsel recommends.
- Search the open web, news, social platforms, nonprofit directories, religious directories, books/publications, podcasts, and domain history for common-law users.
- Search singular/plural, spacing, hyphenation, abbreviations, phonetic equivalents, and distinctive root words separately.
- Escalate any material same-field use to trademark counsel before selection.

Gate 4 - Digital identity

For each surviving finalist, record availability or current ownership of:

- primary .org and reasonable alternate domain(s);
- common social handles;
- major search-engine result ambiguity;
- email-domain usability;
- obvious typo/confusion risks.

Domain availability is **not** trademark clearance and a trademark result is **not** domain ownership.

Gate 5 - Outside perception test

Give the name, without explanation, to at least five people who are not involved in the project. Ask:

1. What kind of organization do you think this is?
2. Does it sound religious, political, commercial, academic, or something else?
3. Does it sound controlling, secretive, grandiose, exclusionary, or misleading?
4. Can you pronounce and spell it after hearing it once?
5. What existing organization or tradition does it remind you of?

Record responses; do not argue with them.

Gate 6 - Selection record

The final board/authorized organizer should retain a short naming memo stating:

- finalists considered;
- searches performed and dates;
- conflicts found and disposition;
- public name;
- legal corporate name;
- assumed-name filing decision if relevant;
- domain(s) authorized for acquisition;
- counsel review, if obtained;
- approving resolution/date.

Current working shortlist

The v0.4 creative screen presently advances **Assembly of Sacred Inquiry**, **Community of Sacred Inquiry**, and **House of Sacred Inquiry** as the three strongest same-root finalists. None is legally cleared yet. No corporate filing, domain purchase, or public launch should describe any candidate as final before this checklist is completed.

Tennessee Pre-Filing Checklist - Domestic Public Benefit Religious Nonprofit

Working filing posture: Tennessee public benefit religious nonprofit corporation; no statutory members at formation; fiscal year December 31.

This is a drafting/control checklist, not a substitute for Tennessee counsel or the Secretary of State's current filing instructions.

A. Human prerequisites

- - ☐ Final legal corporate name cleared.
- - ☐ Incorporator identified and legal name confirmed.
- - ☐ At least three natural-person directors identified for organization, including the Founder plus at least two additional directors.
- - ☐ Separate President and Secretary identified before organizational completion; one individual will not simultaneously hold both offices.
- - ☐ Registered agent consents to serve.
- - ☐ Independent-Chair recruitment is underway even if not yet completed.

B. Address information

- - ☐ Principal office street/mailling information finalized.
- - ☐ Registered office in Tennessee finalized.
- - ☐ Registered agent name exactly matches the filing.
- - ☐ Public-record/privacy implications reviewed before inserting home addresses.

C. Charter fields and substantive clauses

Confirm the filing-ready charter contains or correctly addresses:

- - ☐ corporate name;
- - ☐ public-benefit status;
- - ☐ statement that the corporation is religious, as applicable;
- - ☐ registered office and agent;
- - ☐ incorporator name/address/signature fields required by the current form;
- - ☐ principal office information;
- - ☐ nonprofit status statement;
- - ☐ statement that the corporation **will not have statutory members** at formation;
- - ☐ 501(c)(3)-compatible exempt-purpose language;
- - ☐ prohibition on private inurement/private benefit consistent with federal tax requirements;
- - ☐ political-campaign prohibition and lobbying limitation consistent with federal tax requirements;
- - ☐ 501(c)(3)-compatible dissolution/dedication-of-assets language;
- - ☐ entrenched founder non-sovereignty / conscience safeguards that counsel determines are appropriate for charter placement;
- - ☐ director selection mechanism consistent with the nonmember bylaws.

D. Cross-document consistency

Before filing, compare the charter against:

- - ☐ bylaws and nonmember schedule;
- - ☐ Institutional Integrity & Anti-Coercion Framework;
- - ☐ Founder Covenant;
- - ☐ Reserved Powers Schedule;
- - ☐ board-independence standard;

- - ☐ Form 1023 narrative and planned public-charity classification;
- - ☐ legal/public naming decision;
- - ☐ fiscal-year choice.

No subordinate document should grant a power that the charter withholds or remove a right that the charter entrenches.

E. Filing economics and evidence

Current Tennessee Secretary of State fee schedule checked September 19, 2026:

- domestic nonprofit **Charter (SS-4418): \$100;**
- **Application for Name Reservation (SS-9425): \$20** if used.

Re-check the live SOS fee page immediately before filing. Save the submitted charter, payment confirmation, stamped/accepted charter, state control number, and any correspondence in the permanent record book.

F. Do not do before acceptance

- Do not represent the Tennessee corporation as already existing before the charter becomes effective.
- Do not sign ordinary contracts in the unformed corporation's name without counsel addressing pre-incorporation liability/ratification.
- Do not open a corporate bank account before the entity and EIN/bank requirements exist.
- Do not publish a tax-deductibility representation that exceeds the organization's actual federal status.

G. Immediately after state formation

1. Obtain EIN using the accepted legal name.
2. Convene the organizational board meeting or execute the lawful organizational consents.
3. Adopt bylaws, integrity framework, policies, banking/signing controls, fiscal year, and record-book architecture.
4. Elect/appoint officers, ensuring President and Secretary are different people.
5. Complete director/officer conflicts and independence disclosures.
6. Activate bookkeeping and document-retention systems.
7. Prepare/complete the full Form 1023 evidence package.
8. Confirm state/local charitable-solicitation, tax, employment, zoning, insurance, and program-specific obligations before the relevant activities begin.

Charitable Assistance and Benevolence SOP

Purpose

Provide food, emergency necessities, limited financial assistance, referrals, and other relief in a manner that serves a genuine charitable class, responds to need/distress, preserves dignity, and prevents donor, founder, clergy, or insider favoritism.

Governing principles

1. **Charitable purpose.** Assistance exists to relieve poverty, distress, emergency hardship, or comparable charitable need; it is not a benefit of loyalty, membership, donation history, doctrinal agreement, volunteering, or closeness to leadership.
2. **Open-ended charitable class.** Eligibility should describe a sufficiently broad or indefinite class rather than preselecting named beneficiaries.
3. **Needs-based decisions.** Except for immediate emergency necessities where a detailed assessment would be unreasonable, continuing/material aid is based on an objective evaluation of current need and available resources.
4. **No spiritual conditions.** A recipient need not attend worship, convert, confess, accept pastoral counseling, volunteer, donate, sign a loyalty statement, remain in the community, or refrain from criticism.
5. **No earmarked pass-through.** The organization retains control and discretion over donated funds. A donor may support an approved charitable program but may not compel the organization to transfer a deductible charitable gift to a preselected individual.
6. **Insider safeguards.** Assistance involving a director, officer, founder, senior spiritual leader, substantial contributor, family member, or person whose selection could benefit an insider is routed to disinterested reviewers and counsel when material. Ordinary compensation/reimbursement is handled under separate policies, not benevolence.
7. **Privacy with accountability.** Collect the minimum sensitive information needed for decision and records; restrict access; never use recipients' hardship stories for publicity without separate informed consent.

Eligible forms of assistance

Subject to program design and resources, assistance may include food, clothing, shelter/housing assistance, utilities, transportation, medical or counseling costs, emergency cash or vouchers, temporary lodging, essential household goods, referrals, and other aid reasonably related to the documented need.

Intake

Record at minimum:

- application/referral date and applicant identifier;
- nature and urgency of need;
- household/context information reasonably necessary to assess need;
- other resources reasonably available, when relevant to non-emergency aid;
- amount/type requested;
- conflicts/insider relationships;
- decision, amount/type approved, approver(s), and payment method;
- follow-up or re-evaluation date if continuing assistance.

Do not require irrelevant religious, medical, immigration, political, or family information merely because the organization has access to it.

Decision authority

The Board sets annual program budget and delegated approval thresholds. Staff/volunteers may authorize only within written limits. Higher-dollar, unusual, recurring, or conflict-affected requests escalate to the designated disinterested committee/directors.

No single Founder/clergy executive may privately direct a payment outside the approved process.

Emergency pathway

For immediate basic necessities or urgent safety, a designated responder may provide reasonable emergency aid before a full financial assessment when delay would defeat the charitable purpose. Record what was provided, why immediate action was reasonable, and any later assessment required for continuing aid.

Prohibited criteria and practices

Do not favor or disfavor applicants based on:

- agreement with a leader's theology or claimed revelation;
- donations to the organization;
- willingness to work/volunteer without ordinary safeguards;
- willingness to keep misconduct confidential;
- withdrawal of a complaint or criticism;
- willingness to join, remain, or return to the religious community.

Assistance must never be threatened or withdrawn as retaliation for protected reporting, departure, or dissent.

Payments and documentation

When practical, pay a vendor/provider directly or use a traceable payment method. Cash may be used when reasonably necessary but requires a receipt/acknowledgment or contemporaneous record. Records should show amount, purpose, need basis, decision authority, and payment evidence while minimizing unnecessary sensitive data.

Donor restrictions

Fundraising language describes the charitable class/program, not a promise to transmit tax-deductible funds to a named person. If the organization conducts a separate non-deductible crowdfunding/pass-through activity, it must be clearly separated and reviewed before launch.

Review

The Board or delegated committee reviews aggregate assistance activity at least quarterly: number served, total aid, exception/conflict cases, repeat/continuing aid, complaints, and whether criteria are producing unfair or coercive outcomes. Individual recipient identities should be omitted from ordinary board reporting unless needed for oversight.

Source basis

IRS guidance for charities providing emergency/hardship relief emphasizes a charitable class, needs-based selection, and appropriate documentation. IRS private-benefit rules prohibit operating a 501(c)(3) for the creator, family, designated individuals, or other private interests. This policy applies those principles beyond disasters as a conservative internal control; counsel/CPA should conform it to the actual benevolence program before launch.

Founder / Organization Intellectual Property Schedule

Purpose: Prevent later ambiguity over what the Founder already owned, what is donated/licensed, and what belongs to the corporation. Complete before material publication, monetization, fundraising around proprietary material, or paid employment.

Annual certification

At least annually, and before a material financing, licensing, publication, leadership transition, or founder-compensation change, the Secretary or delegated officer should confirm that this schedule is current and that insider transfers/licenses have the required conflict review.

v0.4 Human-Input Boundary

The following work has been completed without inventing facts: governance system, founding transaction templates, record book, identity architecture, candidate naming screen, founding-board recruitment system, federal classification strategy, Form 1023 activity narrative draft, founder compensation architecture, three-year financial model, name-clearance workflow, Tennessee pre-filing checklist, charitable-assistance SOP, and IP schedule.

The next steps cannot be completed truthfully without real-world inputs

1. **Name:** Founder selects approximately three finalists, after which final Tennessee/trademark/domain clearance can occur and one legal/public name can be adopted.
2. **People:** at least two additional natural-person directors must actually agree to serve; a person separate from the President must actually agree to serve as Secretary. Formation target remains four additional directors.
3. **Addresses:** registered office and principal office must be supplied immediately before the Tennessee filing.
4. **Program facts:** worship/gathering frequency, actual launch sequence, fees, children's-program timing, ordination timing, and fundraising channels must become concrete enough to make the Form 1023 narrative factual rather than aspirational.
5. **Budget facts:** good-faith Year 1-3 revenue and expense assumptions must be supplied/approved; numbers will not be invented to satisfy public-charity classification.

Autonomous work that resumes when inputs arrive

When names of candidate directors are provided, produce candidate-specific packets and onboarding records. When three name finalists are selected, perform final current public conflict screens and assemble the naming decision record. When budget/program assumptions are supplied, finalize the Form 1023 narrative, financial schedules, requested public-charity classification, and filing evidence index. When the name, board, Secretary, and addresses exist, instantiate the charter/bylaws and organizational packet and move to filing-ready v0.5.